

Vijay Kumar Agrawal v. State of U.P.

Allahabad High Court · Division Bench · 12 December 2018 · Writ - C No. 39833 of 2018 · **Stay of coercive recovery continued; listed for instructions**

HEADNOTE

On a plea that a recovery citation issued without deciding the petitioner's complaint/objections under clause 6.5 of the U.P. Electricity Supply Code, 2005 was illegal, the Division Bench granted the distribution licensee time to obtain instructions, listed the writ, and directed that no coercive steps be taken, later continuing that stay until further orders. The 6.5 objection and the citation were not decided on merits.

FACTUAL SUMMARY

Vijay Kumar Agrawal petitioned the Allahabad High Court against the State of Uttar Pradesh and Purvanchal Vidyut Vitran Nigam Ltd. He alleged that a recovery citation had issued without first deciding his complaint or objections under clause 6.5 of the Electricity Supply Code, 2005. Counsel for the distribution company repeatedly sought time to obtain instructions. The Division Bench adjourned the writ into January 2019 and, in the meantime, restrained coercive steps against him.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory stay of recovery citation

HOLDING

On the licensee's request for time to obtain instructions on the plea that a recovery citation issued without deciding clause 6.5 objections was illegal, the Court listed the writ and directed that no coercive steps be taken against the petitioner, later continuing that stay until further orders. ¶ 2-3

PRINCIPLE TAGS

procedural-listing-no-construction On a plea that a recovery citation issued without deciding the petitioner's complaint/objections under clause 6.5 of the U.P.. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A RECOVERY CITATION MAY ISSUE BEFORE DECISION OF THE CONSUMER'S CLAUSE 6.5 COMPLAINT/OBJECTIONS

The Court recorded the argument but granted only an interlocutory stay and time to the licensee; the writ was not decided on merits. ¶ 2-3